

01197719	DSP/DNS - Trust	TENTATIVE RULING Case: DSP/DNS - Trust 01197719 Calendar No: 3 Date: 08/26/26 MOTION TO STRIKE COSTS (ROA 406) Respondents Sarah Renner and Cloud 9 Massage Therapy (collectively, "Respondents") bring this motion (ROA 406) to strike the Memorandum of Costs (ROA 396) filed by Petitioner Brad Perrin ("Petitioner") in its entirety. The motion is DENIED. "Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3)." (Cal. Rules of Court, Rule 3.1700(b)(1).) Here, Respondents claim they were only served on 11/20/25 by mail to an incorrect address. In opposition, Petitioner offers proof that Respondents' counsel was electronically served on 11/20/25, which would make the filing of this motion untimely by one day. Regardless of timing, this motion may be denied on the merits. "In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; 'if so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.'" (<i>Foothill-De Anza Community College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29, citation omitted.) "If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the defendant; the burden of showing an item is not properly chargeable or is unreasonable falls on the objector." (<i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 858.) On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Ass'n.</i> (1993) 19 Cal.App.4th 761, 774–776.) Whether a cost item
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		was reasonably necessary to the litigation is a question of fact for the trial court to determine. (<i>Foothill-De-Anza Comm. College Dist. v. Emerich, supra</i>, 158 Cal.App.4th at pp. 29-30.) Here, Respondents did not object to any particular item of cost. Moreover, Petitioner's opposition (ROA 499) supported each item of cost set forth in the Memorandum of Cost. Counsel for Petitioner is to ordered to give notice of this ruling.
01266610	De Leon - Trust	TENTATIVE RULING Case: De Leon - Trust 01266610 Calendar No: 7 Date: 08/26/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 327) Attorney Robert J. Legate seeks to be relieved as counsel for Ruth Chase and Robert Martinez. Counsel has fully complied with California Rules of Court, Rule 3.1362. The clients and another party, Eva Bernal, jointly filed an Objection to the motion to be relieved. (ROA 355.) Ms. Bernal does not have standing to object to this motion, lacks personal knowledge of many of the facts asserted in the Objection, and claims no prejudice that would result to her personally if counsel is relieved. Ms. Chase objects on the grounds that Mr. Legate gave notice of his retirement 4 months ago, not 8 months ago as he states; that Mr. Legate was not willing to proceed to trial without a further pre-trial retainer; that Mr. Legate fabricated his intent to retire; and that Mr. Legate has not been properly serving notice of certain documents to certain people. Ms. Chase states in the Objection that she finds it very difficult to continue to work with Mr. Legate. She also states that she is "NOT" opposed to a ruling that would release Mr.